25VECV01319 25VECV01319

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-13

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Case Number: 25VECV01319 Hearing Date: July 13, 2026 Dept: W

Judge ___________

Department W

Hearing Date:

Monday, July 13, 2026

Case Name:

Todd Maidy v.
FCA US, LLC, et al.

Case No.:

25VECV01319

MOTIONS

Plaintiff’s Motion to Compel Compliance

Moving Party:

Plaintiff Todd Maidy

Responding Party:

Defendant FCA US, LLC

Notice:

Proof of Service on March 20, 2026.

Documents:

Plaintiff’s Motion to Compel Initial Disclosures – 3/20/26

Defendant’s Opposition – 6/29/26

Declaration of Adam Rivera in Support – 6/29/26

Plaintiff’s Reply – 7/2/26

Ruling:

The Court tentative DENIES Plaintiff’s Motion to Compel Initial Disclosures as MOOT.

The Court GRANTS Plaintiff’s request for $2,500 in statutory sanctions.

Relevant Background:

This is a lemon law case. Plaintiff Todd Maidy alleges that on August 19, 2022, Plaintiff purchased a vehicle manufactured by Defendant FCA US, LLC. Plaintiff alleges that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On March 10, 2025, Plaintiff brought suit against Defendants FCA US, LLC, and Van Nuys Chrysler Dodge Jeep Ram, alleging multiple violations of the Song Beverly Act, as well as fraudulent inducement.

On July 21, 2025,

Defendant FCA US, LLC, filed their Answer.

Now, almost a year later, Plaintiff moves to compel initial disclosures from Defendant FCA, US, LLC.

Analysis:

Discovery Analysis

Plaintiff moves to compel the production of multiple documents required under CCP § 871.26(b) from Defendant FCA US, LLC. (Mot. for Compliance, p. 2:8-10.) Specifically, Plaintiff requests production of documents listed under CCP § 871.26, subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). (Ibid.)

In 2024, the California Legislature passed AB 1755, which created multiple new procedural and timing rules for lemon law cases. As part of this bill, the legislature enacted CCP § 871.26, which outlines mandatory discovery requirements for all Song-Beverly cases. This includes the rule that, "[w]ithin 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery reques, provide to all other parties an initial disclosure and documents pursuance to [871.26] subdivisions (f), (g), and (h)." (CCP § 871.26(b).)

Here, Defendant filed their Answer on July 1, 2025. (See, Answer.) This put Defendant's 60-day deadline for automatic discovery disclosures under CCP § 871.26(b) on August 30, 2025. To Defendant's credit, they produced a significant number of documents before they had even filed their answer. (Riviera Decl. ¶ 9.) However, according to Plaintiff, this production was incomplete, as it did not include multiple required disclosures, such as the Warranty Policies and Procedure Manual, PDI Documentation for the vehicle, and various TBS and ISB report. (Mot. for Compliance, Rucker Decl. ¶ 11.) As of March 20, 2026, Defendant had not produced those documents. This means that Defendant missed their 60-day deadline to disclose these required documents.

For these reasons, the Court finds that Defendant failed to comply with the mandatory disclosure requirements under CCP § 871.26.

However, Defendant argues in their Opposition that this motion is MOOT. Specifically, Defendant highlights that, on June 10, 2026, this Court granted a stipulated protective order, which enabled Defendant to produce all of the remaining documents that are the subject of this motion. (Opp. p. 2:6-15; see also, Minute Order 6/10/26.) The Court is inclined to believe Defendant. However, Defendant merely asserts that this Protective Order brings them into full compliance, without providing any supporting declaration or evidence. (See Rivera Decl.) Thus, the Court will need to resolve this factual dispute at the hearing on this motion. There, the Court will ask the parties to confirm Defendant's compliance.

For these reasons, the Court TENTATIVELY DENIES this motion as MOOT, pending discussing at the hearings.

Sanctions

Plaintiff also requests $2,500 in statutory sanctions in conjunction with this motion. (Mot. for Compliance, p. 15:16-22.)

CCP § 871.26(j)(1) states that, "[u]nless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: … [a] two-thousand-five-hundred-dollar ($2,500) sanction against the defense attorney …, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (CCP § 871.26(j)(1).) Notably, the language of this statute mandates the imposition of sanctions, with the only exception being good cause shown. Thus, even though this motion is potentially moot, sanctions are still appropriate.

The Court finds that Defendant has not shown good cause for their lack of compliance with this statute.

First, as discussed above, Defendant did not produce all of the required documents under

CCP § 871.26 by the statutory deadline. (Rucker Decl. ¶ 11.) In their Opposition, Defendant argues that, because their initial disclosure was "substantially compliant" with the statute, sanctions are inappropriate. (Opp. p. 3:22-28.) However, Defendant cites no case law to suggest that substantial compliance is sufficient under this statute. The statute itself states that, "[t]he defendant or manufacturer shall provide the following documents to all other parties." (CCP § 871.26(h).) This language clearly mandates full disclosure of the listed documents. Defendant did not produce all of the documents. Thus, they failed to comply with the statute.

Defendant also argues that their non-compliance is justified, because the documents they withheld included confidential and proprietary information, and thus Defendant needed a protective order in order to produce them. (Opp. p. 4:2-11.) However, Defendant once again cites no case law that suggests that documents that require a protective order are except from CCP § 871.26. (Ibid.) Notably, the statute itself makes no mention of protective orders. (See generally, CCP § 871.26.) Thus, the Court does not find that Defendant's proclaimed need for a protective order constitutes good cause.

Third, Defendant points out that Plaintiff filed this motion long after the initial disclosure deadline, and failed to meet and confer before filing this motion. (Opp. p. 4:19-28.) The Court agrees with Defendant that it would be better for the parties to resolve these discovery disputes outside of Court. However, the Court does not agree that Plaintiff's actions here create good cause for Defendant's failure to produce the statutorily required initial disclosures.

The purpose of CCP § 871.26 is to establish a set of statutorily required discovery disclosures for both parties in lemon law cases. This statute puts the parties on notice of all the documents they need to produce, meaning they can produce them proactively. If Defendant had proactively complied with CCP § 871.26 from the beginning, Plaintiff's delayed motion, or failure to meet and confer would not matter, as Defendant would be in compliance with the statute. But, as explained above, Defendant did not produce all of the documents required under CCP § 871.26. Therefore, sanctions are appropriate.

For these reasons, the Court GRANTS Plaintiff's request for $2,500 in statutory sanctions against

Defendant FCA US, LLC.

Conclusion:

The Court
tentative DENIES Plaintiff’s Motion to Compel Initial Disclosures as MOOT.

The Court GRANTS
Plaintiff’s request for $2,500 in statutory sanctions.